

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No. 26806/2016 E
JAMAL SMALLS, BRANDON WRIGHT, and WILTON
WAGSTAFF,

Plaintiffs,

AMENDED COMPLAINT

-against-

THE CITY OF NEW YORK, CHARLES GOVE, and
JOHN DOES #1-2, being the fictitious names of New
York City Police Department officers whose names are
unknown to Plaintiffs,

Defendants.

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Plaintiffs, through their counsel, for their complaint, hereby amend their
complaint as of right, and for their Amended Complaint state the following upon
information and belief:

PARTIES

1. Plaintiff JAMAL SMALLS is an individual who resides in the County of
Bronx, State of New York.

2. Plaintiff BRANDON WRIGHT is an individual who resides in the County
of Bronx, State of New York.

3. Plaintiff WILTON WAGSTAFF is an individual who resides in the
County of Bronx, State of New York.

4. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a
municipal corporation organized under the laws of the State of New York, in and as the
City of New York.

5. Defendant CHARLES GROVE is an individual whose residence is unknown to Plaintiff, and who is a New York City Police Department officer.

6. Defendant JOHN DOES # 1-2 are New York City Police Department officers whose names and addresses are presently unknown to Plaintiff.

7. The individual Defendants (that is, the individual police officers) are being sued both in their individual capacity and in their official capacity as police officers employed by Defendant CITY.

NOTICE OF CLAIM HAS BEEN FILED

8. Plaintiff has served a timely notice of claim(s) upon Defendant CITY within 90 days after Plaintiff was falsely arrested and detained, as described in this complaint.

9. At least 30 days have elapsed since the service of such notice of claim(s) and that adjustment or payment has been neglected or refused.

FACTS

10. On October 14, 2015 at about 5:00 P.M., Plaintiffs were lawfully in the courtyard of 681 Magenta Street, Bronx, New York.

11. On October 14, 2015, Defendant CHARLES GROVE (Shield # 014285) and JOHN DOES # 1-2 were New York City Police Department officers (all collectively will be hereinafter referred to as "Defendant Police Officers.")

12. On October 14, 2016, Plaintiffs, who are black, were arrested for no reason by Defendant Police Officers.

13. A reasonable person or police officer should have known that Plaintiffs

had committed no crimes.

14. Defendant Police Officers had no warrant arrest Plaintiffs.

15. Defendant Police Officers otherwise had not other lawful reasons to arrest Plaintiffs.

16. Notwithstanding, Defendant Police Officers arrested and handcuffed Plaintiffs.

17. Prior to being handcuffed, Plaintiffs attempted to inform Defendant Police Officers that he had committed no crime and that he did not want be handcuffed and go to jail, but Plaintiff went peacefully and submitted without resistance to the false arrest.

18. Upon arrival at the jail, Plaintiffs were subjected to a humiliating search and were deprived of all money and personal belongings.

19. Plaintiffs were then incarcerated in a cell with criminals.

20. Eventually, Plaintiff was released from jail after over 24 hours in custody.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

21. Plaintiffs repeat and re-alleges every allegation in this complaint.

22. Defendant Police Officers intended to confine and completely confined Plaintiffs.

23. Plaintiffs were cognizant of the confinement.

24. Plaintiffs voiced objections to the confinement in which they did not consent.

25. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs in any way.

26. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiffs and in violating Plaintiffs' rights and discriminating against them and profiling them because of their race.

27. Defendant Police Officers violated Plaintiffs' civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, and rights under the New York State Constitution.

28. Pursuant to 42 U.S.C. § 1983, Plaintiffs are entitled to damages from Defendant Police Officers for violations of Plaintiff's constitutionally protected civil rights.

29. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

30. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiffs based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiffs and in falsely arresting Plaintiffs and others in the future.

31. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiff is also entitled to damages from Defendant CITY for violations of Plaintiff's constitutionally protected civil rights against.

32. Finally, all Defendants are liable for paying Plaintiffs an award of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

33. Plaintiffs repeats and re-alleges every allegation in this complaint.
34. Defendant Police Officers intended to confine and completely confined Plaintiffs.
35. Plaintiffs were cognizant of the confinement.
36. Plaintiffs voiced strenuous objections to the confinement in which they did not consent.
37. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs.
38. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiffs.
39. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiffs.
40. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiff.

THIRD CAUSE OF ACTION

(Battery)

41. Plaintiffs repeats and re-alleges every allegation in this complaint.
42. Defendant Police Officers' acts were intentional.
43. Defendant Police Officers' conduct resulted in harmful, offensive, and

nonconsensual bodily contact with the Plaintiffs amounting to the civil tort of battery.

44. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiffs.

45. Defendant CITY, therefore, is vicariously liable for the battery that Defendant police officers inflicted upon Plaintiff.

46. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION

(Negligence)

47. Plaintiffs repeats and re-alleges every allegation in this complaint.

48. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.

49. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiff.

50. The actions of Defendant Police Officers caused Plaintiffs to suffer damages.

51. Consequently, Defendant Police Officers are liable for negligence.

52. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiff.

53. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

54. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION

(Negligent Hiring and Retention)

55. Plaintiff repeats and re-alleges every allegation in this complaint.
56. Defendant CITY had a duty to hire and retain competent police officers.
57. Defendant CITY knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.
58. Defendant CITY breached its duty to hire and retain competent police officers.
59. As a result of the CITY's breach, the Plaintiffs suffered damages.
60. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant police officers.

WHEREFORE, Plaintiffs demand judgment as follows:

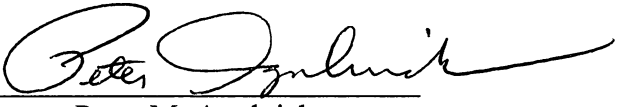
- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$2 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$2 million against Defendant CITY;

(f) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Great Neck, New York
October 20, 2016

Yours, etc.,

PETER M. AGULNICK, P.C. . .

By: 
Peter M. Agulnick

Attorneys for Plaintiffs

**JAMAL SMALLS, BRANDON
WRIGHT, and WILTON WAGSTAFF,**
8 Bond Street, Suite 303
Great Neck, New York 11021-2426
(212) 571-2266
(File # 411-001)

AFFIRMATION OF SERVICE BY FIRST-CLASS MAIL

The undersigned, an attorney admitted to practice law in the State of New York, affirms the following to be true under penalties of perjury: I am not a party to this action and I am over the age of 18. On October 20, 2016, I mailed a copy of the within Supplemental Summons and Amended Complaint by first-class mail by depositing a true copy thereof enclosed in a post-paid envelope in an official depository under the exclusive care and custody of the U.S. Postal Service within the State of New York, addressed to each of the following:

The City of New York
C/O Zachary W. Carter, Esq.
New York City Law Dept.
100 Church Street
New York, NY 10007

Officer Chalres Gove
47th Precinct, NYPD
4111 Laconia Ave.
Bronx, NY 10466

Dated: Great Neck, New York
October 20, 2016



PETER M. AGULNICK